

the testator and A. that the devisee or legatee will as to a part or even the entirety of the beneficial interest hold upon any trust which is *lawful* in itself, in favour of B., the Court, at the instance of B., will affect the conscience of A., and decree him to execute the testator's intention (*b*). But in this, as in other cases, if it appear that A. was not meant to be a trustee, but to have a mere discretion, the Court cannot convert the arbitrary power into a trust (*c*).

[9. **Intention not communicated.** — But where the bequest was on the face of the will a beneficial one, and the understanding between the testator and the legatee was, that he should take the property as trustee upon trust to deal with it according to further directions which the testator was to give by letter, and the testator subsequently wrote letters containing the directions, but never sent them or communicated their contents to the legatee, it was held that the legatee was a trustee for the next of kin; and it was considered to be essential for the validity of the trust that it should be communicated to the legatee in the testator's lifetime, and that he should *accept the particular trust* (*d*).

10. **Admission by one joint tenant.** — Where property was devised to four persons as joint tenants, and one of them in his will made certain statements which pointed to a secret trust, it was held that these statements could not affect the

(*b*) *Kingsman v. Kingsman*, 2 Vern. 559; *Drakeford v. Wilks*, 3 Atk. 539; *Attorney-General v. Dillon*, 13 Ir. Ch. Rep. 127; *Gray v. Gray*, 11 Ir. Ch. Rep. 218; *Barrow v. Green*, 3 Ves. 152; *Marriot v. Marriot*, 1 Strange, 672, *per Cur.*; *Segrave v. Kirwan*, 1 Beatt. 164, *per Sir A. Hart*; *Leister v. Foxcroft*, cited *ib.*; *Chamberlaine v. Chamberlaine*, 2 Eq. Ca. Ab. 43; *ib.* 465; *Irvine v. Sullivan*, 8 L. R. Eq. 673; *Norris v. Frazer*, 15 L. R. Eq. 318; *Thynn v. Thynn*, 1 Vern. 296; *Devenish v. Baines*, Prec. in Ch. p. 3; *Oldham v. Litchford*, 2 Vern. 506; S. C. Freem. 284; *Reech v. Kennigate*, Amb. 67; S. C. 1 Ves. 123; *Newburgh v. Newburgh*, 5 Madd. 266, *per Sir John Leach*; *Chamberlain v. Agar*, 2 Ves. & B. 259; *Nab*

v. Nab, 10 Mod. Rep. 404; *Strode v. Winchester*, 1 Dick. 397; S. C. stated from Reg. Lib. App. No. 1 to 3d edition of the present work; and see *Alison's case*, 9 Mod. Rep. 62; *Dixon v. Olmuis*, 1 Cox, 414. But in the case put, B. takes by the rules of equity, and not by testamentary disposition, and, therefore, where A. had undertaken, at the request of a testatrix in Ireland to hold for a charity, he paid legacy duty as beneficial owner, though by the Irish Stamp Acts a legacy to a charity was exempted; *Cullen v. Attorney-General*, 1 L. R. H. L. 190.

(*c*) *McCormick v. Grogan*, 1 I. R. Eq. 313; 4 L. R. H. L. 82; *Creagh v. Murphy*, 7 I. R. Eq. 182.

[(*d*) *Re Boyes*, 20 Ch. D. 531.]